

Tarun Yadav & Ors vs The State & Anr on 10 January, 2020

Author: Chander Shekhar

Bench: Chander Shekhar

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ CRL.M.C. 3104/2019 & CrL.M.A. 12754/2019
TARUN YADAV & ORS Petitioners
Through: Mr. H.S. Yadav, Advocate with
Petitioners in person.

versus

THE STATE & ANR Respondents
Through: Mr. Amit Chadha, APP with SI
Anita from PS-BABA
HARIDAS NAGAR Nagar.
R-2 in person.

CORAM:
HON'BLE MR. JUSTICE CHANDER SHEKHAR
ORDER

% 10.01.2020

1. Previous cost of Rs.20000/- is paid to the respondent by the petitioners.
2. The petitioners have filed the present petition under Section 482 of the Code of Criminal Procedure, 1973 for quashing of FIR No.0182/2013, under Sections 498-A/406/34 of the Indian Penal Code, 1860 ('IPC'), registered at P.S.: Baba Haridas Nagar, Delhi and the proceedings emanating therefrom.
3. The petitioners and respondent No.2 as well as their respective counsel submitted that the parties have settled their disputes on their own free will, without any force or coercion before the Delhi High Court Mediation and Conciliation Centre, on 01.08.2018, in terms whereof petitioner No.1 had agreed to pay Rs.11,50,000/- to the respondent No.2.
4. It is further submitted that out of Rs.11,50,000/-, balance amount of Rs.3,66,667/- has been paid to respondent No.2 today vide Demand Draft No.006556 dated 09.01.2020 drawn on HDFC Bank. It is also submitted that the marriage between the petitioner No.1 and respondent No.2 has been dissolved by mutual consent under Section 13B(2) of the Hindu Marriage Act, 1955 vide a decree of divorce dated 12.12.2018.
5. Respondent No.2, who is present in Court, has reiterated the aforesaid facts and submitted that she has no objection to the petition being allowed and the FIR being quashed.

6. The Investigating Officer ('IO'), who is present in Court, has identified the petitioners as well as respondent No.2 and has also verified the settlement arrived at between the parties.

7. In view of the aforesaid circumstances, the settlement arrived at between the parties and the dissolution of marriage, this Court is of the view that no fruitful purpose would be served in keeping the parties entangled in the criminal proceedings. Accordingly, in the interest of justice, FIR No.0182/2003, under Sections 498-A/406/34 of the Indian Penal Code, 1860 ('IPC'), registered at P.S.: Baba Haridas Nagar, Delhi and the proceedings emanating therefrom are quashed.

8. Petition is disposed of in above terms.

CHANDER SHEKHAR, J JANUARY 10, 2020 ssc